

DOCUMENT 03 — LOGISTICS RISK AND SHIPPING ANNEX

Annexe Logistique — Risques de Transport Maritime et Délais (Annex D to the Facilitation Agreement)

COMPLETION SHEET (fillable)

Type directly into the fields below (Adobe Acrobat, Foxit, or any modern browser). Values entered here complete the corresponding [bracketed] placeholders in the body text that follows.

Annex No.

Facilitation Agreement No.

Date

Client — full name

Broker — name

Vehicle — VIN

First registration date (China)

Latest Shipment Date (LSD)

Maximum age at vessel departure

Port of loading

Port of discharge

Incoterm

Marine insurance (policy No. / CIF ref.)

Prepared by (Broker) signature field / Client signature field:

Broker:

Client:

This Annex is attached to and forms an integral part of Facilitation Agreement No. [] between [BROKER] ("the Broker") and [CLIENT] ("the Client") concerning the vehicle VIN [] ("the Vehicle"). It allocates the risks of maritime carriage between the Chinese port of loading and the Algerian port of discharge.

Article 1 — Definitions

1.1 **"Latest Shipment Date" (LSD)**: the date stipulated in the Completion Sheet by which the Vehicle must be shipped on board, set so that the Vehicle is no older than the **Maximum Departure Age** of [2 years and 9 months] on the date of vessel departure. 1.2 **"Shipped on Board Date"**: the date shown on the bill of lading (B/L). 1.3 **"Carrier"**: the ocean carrier, its agents and any transshipment operator. 1.4 **"Transit Period"**: the period from vessel departure at the Chinese port to availability of the Vehicle for customs clearance at the Algerian port.

Article 2 — Transit Delays and the Three-Year Rule

2.1 **Nature of the Broker's duty.** The Broker's sole obligation as to timing is to use best efforts to procure that the Vehicle is **shipped on board no later than the LSD** and within the Maximum Departure Age. This obligation is **conclusively discharged** by production of a bill of lading bearing a Shipped on Board Date on or before the LSD.

2.2 **Age-out exoneration.** The Client acknowledges that Algerian regulations assess the three (3)-year age limit at the date of customs registration, and that the Transit Period is entirely outside the Broker's control. Accordingly, **where the Vehicle was shipped on or before the LSD and within the Maximum Departure Age, the Broker shall bear no liability whatsoever if the Vehicle exceeds the three-year limit before customs registration** by reason of, without limitation: port congestion at origin, transshipment or destination ports; vessel rerouting or diversion, including diversions of Red Sea / Suez routings via the Cape of Good Hope; adverse weather or sea conditions; carrier schedule changes, blank sailings, vessel substitution or breakdown; strikes, lock-outs or labour actions; quarantine or sanitary measures; or administrative backlog at the Algerian port.

2.3 **Informed acceptance.** The Client confirms having been informed that typical transit is 20 to 45 days but may extend beyond, and that the LSD incorporates a prudential buffer. The Client approves the LSD and the Maximum Departure Age stated in the Completion Sheet.

2.4 **Consequences of age-out.** If, despite timely shipment under Article 2.1, the Vehicle ages out of the import window: (a) all consequences (refusal of clearance, re-export costs, storage, demurrage, fines, forced resale abroad) are borne exclusively by the Client; (b) the Facilitation Fee remains fully acquired; (c) at the Client's written request, the Broker may assist, on a best-efforts and separately remunerated basis, with re-export or resale of the Vehicle in a third country.

2.5 For the avoidance of doubt, if the Broker fails to procure shipment by the LSD for reasons attributable to the Broker alone (excluding acts of the Client, the Supplier, the Carrier or any authority), the Client's remedy is limited in accordance with Article 7.5 of the Facilitation Agreement (fee cap).

Article 3 — Damage in Transit; Risk Transfer and Marine Insurance

3.1 **Risk transfer.** All maritime risk in the Vehicle transfers to the Client **no later than the vessel's departure from the Chinese port**, or earlier where the applicable Incoterm [] so provides. The Broker, who holds no title and is not a party to the contract of carriage, **bears no transit risk at any time**.

3.2 **Excluded damage.** The Broker shall in no case be liable for: scratches, dents, chips or paint damage; interior soiling or damage; water, humidity or salt-air damage and resulting corrosion; 12V or traction battery discharge during carriage; theft of the Vehicle, its parts, keys or accessories; vandalism; general average contributions; or total loss of the Vehicle, however arising during the Transit Period.

3.3 **Mandatory marine cargo insurance.** The Client shall ensure that the Vehicle is covered by marine cargo insurance for at least **110% of the sum of the invoice value and freight**, either (a) included in the Supplier's CIF terms — in which case the Client must obtain and verify the insurance certificate before departure — or (b) subscribed by the Client directly. **Failure to procure or verify insurance is at the Client's sole risk** and shall never engage the Broker's liability.

3.4 **Claims procedure.** Upon delivery at the Algerian port, the Client (or his transitaire) must: record any visible damage on the delivery/survey report (constat) before removing the Vehicle from the port; photograph the damage; and notify the insurer and the Carrier within the applicable time bars (typically three (3) days for apparent damage, without delay for concealed damage). The Broker may, as a courtesy, assist in assembling claim documents, but is never a party to, nor guarantor of, any insurance or carriage claim.

Article 4 — Customs, Demurrage and Mid-Transit Policy Change

4.1 **Client-borne charges.** The Client bears exclusively and without recourse against the Broker: all customs duties and taxes; port and terminal handling charges; storage and parking fees; container demurrage and detention; transitaire fees;

inspection and conformity fees; and any fine or penalty assessed at the Algerian port.

4.2 **Prompt clearance.** The Client shall complete banking formalities, appoint a transitaire and deposit the clearance file without delay after notice of arrival. All storage and demurrage accruing from the Client's delay, missing documents or unavailability of funds are the Client's sole charge.

4.3 **Mid-transit regulatory change.** If, after vessel departure, the Algerian authorities suspend, restrict or modify the import regime applicable to the Vehicle (including duty rates, exemptions, age, displacement or motorisation conditions), such that clearance is blocked, delayed or made more onerous: (a) this constitutes an act of public authority (fait du prince) for which the Broker bears no liability; (b) **the Facilitation Fee remains fully acquired to the Broker**, the Facilitation Services having been rendered; (c) all resulting costs (storage, demurrage, re-export, additional duties) are borne by the Client.

4.4 **Seizure attributable to the Client.** In case of customs seizure, blocking or litigation arising from the Client's quota status, documents, declarations or funds, Article 7.1 of the Facilitation Agreement (hold-harmless) applies in full.

Article 5 — Maritime Force Majeure

In addition to Article 9 of the Facilitation Agreement, the Parties expressly qualify as force majeure for the purposes of this Annex: acts of war or piracy in transit corridors; closure or restriction of the Suez Canal or of any strait or canal on the routing; embargoes and sanctions affecting the Carrier or routing; closure of the port of loading or discharge; epidemics and quarantine measures; and cyber incidents affecting the Carrier or port systems. Occurrence of such an event suspends the Broker's coordination obligations without liability; sums due for services already rendered remain acquired.

Article 6 — Precedence and Survival

6.1 In case of conflict between this Annex and the Facilitation Agreement on carriage, delay or transit-risk matters, **this Annex prevails**. 6.2 Articles 2 to 5 survive delivery of the Vehicle and termination of the Facilitation Agreement. 6.3 Governing law and jurisdiction: as per Article 11 of the Facilitation Agreement.

THE BROKER	THE CLIENT
Name — Signature and stamp	Name — Signature preceded by "Read and approved"